

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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HILTON BATES,

Plaintiff,

-against-

SUMMONS

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
STEVEN LAVIN (Tax Reg. # 952971), NYPD POLICE
OFFICER DAVID DARCY (Tax Reg. # 954700), NYPD
SERGEANT BRIAN SCHULMAN (Tax Reg. #939435),
NYPD SERGEANT DAVID GRIECO (Shield # 3078),
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Plaintiff Designates
Kings County
as the place of trial

Defendants.
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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 20, 2021

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER STEVEN LAVIN (Tax Reg. # 952971), 67th Precinct, 67th Detective Squad,

NYPD SERGEANT BRIAN SCHULMAN (Tax Reg. #939435), Narcotics Borough Staten Island, 1
Police Plaza, New York, NY 10038

NYPD POLICE OFFICER DAVID DARCY (Tax Reg. # 954700), Criminal Intelligence Section, 1
Police Plaza, New York, NY 10038

NYPD SERGEANT DAVID GRIECO (Shield # 3078), Unknown Command, 1 Police Plaza, New
York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
HILTON BATES,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
STEVEN LAVIN (Tax Reg. # 952971), NYPD POLICE
OFFICER DAVID DARCY (Tax Reg. # 954700), NYPD
SERGEANT BRIAN SCHULMAN (Tax Reg. # 939435),
NYPD SERGEANT DAVID GRIECO (Shield # 3078),
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.

-----X
Plaintiff **Hilton Bates**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights when the individually named police defendants subjected him to, among other things, assault, battery, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, cruel and unusual punishment and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages,

declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of Kings County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER STEVEN LAVIN, assigned Tax Registration # 952971, who at the time of this incident was employed with the 67th Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.¹
5. NYPD OFFICER STEVEN LAVIN (Tax Reg. # 952971) is being sued in his individual capacity and official capacity.
6. NYPD OFFICER DAVID DARCY, assigned Tax Registration # 954700, who at the time of this incident was employed with the 67th Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.²
7. NYPD OFFICER DAVID DARCY (Tax Reg. # 954700) is being sued in his individual capacity and official capacity.
8. NYPD SERGEANT BRAIN SCHULMAN, assigned Tax Registration # 939435, who at the time of this incident was employed with the 67th Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.³

¹ At the time of this filing, the NYPD Employment Verification Unit confirms that NYPD Defendant Steven Lavin is now assigned to the 67th Detective Squad, and service will reflect this change.

² At the time of this filing, the NYPD Employment Verification Unit confirms that NYPD Defendant David Darcy is now assigned to NYPD Criminal Intelligence Section, and service will reflect this change.

9. NYPD SERGEANT BRIAN SCHULMAN (Tax Reg. # 939435) is being sued in his individual capacity and official capacity.
10. NYPD SERGEANT DAVID GRIECO, assigned Shield #3078, who at the time of this incident was employed with the 67th Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.⁴
11. NYPD SERGEANT DAVID GRIECO (Shield # 3078) is being sued in his individual capacity and official capacity.
12. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
13. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
14. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
15. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.
16. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police

³ At the time of this filing, the NYPD Employment Verification Unit confirms that NYPD Defendant Brian Schulman is now assigned to Narcotics Borough Staten Island, and service will reflect this change.

⁴ At the time of this filing, the NYPD Employment Verification Unit confirms that NYPD Defendant David Grieco is no longer affiliated with the NYPD, and service will reflect this change.

Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
18. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
20. The City of New York held a 50(h) hearing examination of Plaintiff on June 11, 2020.

STATEMENT OF FACTS

21. On September 11, 2019 at approximately 11:00 p.m. in the area of 3705 Church Avenue in Kings County, New York, numerous police officers in plainclothes from the NYPD 67th Precinct, and other unknown police commands, including upon information and belief, defendant NYPD Officer Steven Lavin (Tax Reg. # 952971), NYPD Officer David Darcy (Tax Reg. #954700), NYPD Sergeant Brian Schulman (Tax Reg. # 939435), NYPD Sergeant David Grieco (Shield # 3078), and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.

22. On September 11, 2019 at approximately 11:00 p.m., Plaintiff was attending a barbeque event in an open-air lot with a private gated entrance at 3705 Church Avenue in Brooklyn, New York.
- Plaintiff was one of approximately nine individuals attending the event. Plaintiff was not engaged in any criminal activity, nor was he in possession of any contraband, narcotics or weapons.
23. At that time, numerous NYPD defendants in plainclothes, including, upon information and belief, defendant NYPD Officer Steven Lavin (Tax Reg. # 952971), NYPD Officer David Darcy (Tax Reg. #954700), NYPD Sergeant Brian Schulman (Tax Reg. # 939435), and NYPD Sergeant David Grieco (Shield # 3078), opened the gate to the lot and entered the premises without a warrant or probable cause or reasonable suspicion that criminal activity had or was occurring therein.
- Defendant NYPD officers directed all present to “freeze.” The moment NYPD officers opened the gate and commanded those in attendance to “freeze,” Plaintiff was not free to leave.
24. After a few moments, defendant NYPD officers made their way onto the lot, and one defendant NYPD officer approached Plaintiff and directed him to sit down. Plaintiff calmly explained that because of a previous injury requiring the surgical placement of a rod into his leg, it was difficult for him to sit back down. Plaintiff was then directed by the defendant NYPD officer to sit down in a much more aggressive manner.
25. Without justification or cause, Plaintiff was then thrown into a metal fence and then onto the ground by the defendant NYPD officer, who proceeded to strike the Plaintiff with his forearm, elbow, and knee, even as Plaintiff was pleading for the defendant NYPD officer to not hurt his surgically-repaired leg. Plaintiff was then pinned down by the defendant NYPD officer who placed his knee on Plaintiff’s back.
26. Plaintiff was then handcuffed from behind, and the defendant NYPD officer arresting Plaintiff began to step on Plaintiff’s handcuffs for no legitimate reason, causing excruciating pain to

Plaintiff's wrists. Plaintiff was not resisting arrest or otherwise acting in a manner that would require or justify this action.

27. Plaintiff was then placed in an NYPD van and transported to the 67th Precinct, where he remained incarcerated for approximately 18 hours. At no point was he informed of why he had been arrested.
28. Upon arriving at the 67th Precinct, Plaintiff was already experiencing severe pain in his wrists and left knee from his violent, illegal arrest, and began requesting medical assistance. Defendant NYPD officers ignored Plaintiff's requests for approximately 18 hours, before finally taking Plaintiff to Kings County Hospital by ambulance, where he was examined. Plaintiff was then released from NYPD custody directly from Kings County hospital without ever being charged. Plaintiff was handcuffed at all times during his transport to the hospital, and at the hospital until his release.
29. During his confinement at the 67th Precinct Plaintiff was subjected to depraved, filthy and inhumane conditions.
30. In addition to being subject to wanton and violent physical abuse during the course of Plaintiff's arrest, the underlying arrest itself was entirely illegal. NYPD arrest records allege that Plaintiff was in possession of a loaded Taurus 9MM firearm, but these allegations were categorically false. Plaintiff never possessed a firearm before or at the time defendant NYPD officers illegally entered the premises at 3705 Church Avenue, and Plaintiff was not found in possession of a firearm at the time of his arrest or at any time subsequent. In fact, the arrest paperwork never states where this alleged weapon was recovered. Nevertheless, these allegations made up the basis of Plaintiff's false and illegal arrest, and were memorialized in official NYPD paperwork.

31. As a direct result of Plaintiff's false arrest, he was illegally detained for approximately 18 hours at the 67th Precinct, and several additional hours at Kings County Hospital, where he was under formal arrest even while waiting for and receiving a medical evaluation. In total, he was in custody for more than 24 hours. As a direct result of Defendant officers' unjustified and brutal assault and battery on Plaintiff, Plaintiff suffered substantial pain in his wrists and left knee, and continues to have heightened anxiety in the presence of police to this day. Plaintiff also received a bill for \$879.25 from the New York City Health and Hospital Corporation for his examination at Kings County Hospital, a direct result of his malicious and unprovoked assault by defendant NYPD officers.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

32. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
33. All of the aforementioned acts of defendants NYPD OFFICERS STEVEN LAVIN and DAVID DARCY, NYPD SERGEANT BRIAN SCHULMAN, NYPD SERGEANT DAVID GRIECO, and OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.
34. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

35. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
36. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
37. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

USE OF EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

38. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
39. Defendants NYPD OFFICERS STEVEN LAVIN and DAVID DARCY, defendant NYPD SERGEANT BRIAN SCHULMAN, NYPD SERGEANT DAVID GRIECO, and NYPD OFFICERS JOHN and JANE DOE #1-12 used excessive force in assaulting Plaintiff at the time of his detention in violation of Plaintiff's rights under the Fourth Amendment to the United States Constitution to be free of the use of excessive force.
40. Defendants NYPD OFFICERS STEVEN LAVIN and DAVID DARCY, defendant NYPD SERGEANT BRIAN SCHULMAN, NYPD SERGEANT DAVID GRIECO, and NYPD OFFICERS JOHN and JANE DOE #1-12 committed the intentional torts of assault and battery against Plaintiff by striking Plaintiff with a knee, forearm and elbow, and stepping on the handcuffs restraining Plaintiff's wrist, causing, *inter alia*, severe pain in Plaintiff's wrist and left knee.

41. In so doing, the conduct of defendants NYPD OFFICERS STEVEN LAVIN and DAVID DARCY, NYPD SERGEANT BRIAN SCHULMAN, NYPD SERGEANT DAVID GRIECO, and NYPD OFFICERS JOHN and JANE DOE #1-12 went well beyond the reasonable force necessary to detain and arrest Plaintiff, and the amount of force that a reasonable officer under the same or similar circumstances would use.
42. At the time that defendants NYPD OFFICERS STEVEN LAVIN and DAVID DARCY, NYPD SERGEANT BRIAN SCHULMAN, NYPD SERGEANT DAVID GRIECO, and NYPD OFFICERS JOHN and JANE DOE #1-12 detained Plaintiff, he was not resisting arrest or acting in a threatening or menacing manner. Plaintiff was not carrying or displaying weapons or any dangerous instruments. No orders were given by Police Officer Defendants to the Plaintiff to stop, remain in place, or otherwise act in a manner that failing to comply would in any way justify the use of physical force, let alone the extreme and outrageous physical contact Defendant Officers subjected Plaintiff to at the time of his detention and arrest.
43. As a result of the foregoing, Plaintiff was the victim of the torts of assault, and battery resulting in physical and emotional injuries, his liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

44. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
45. As a result of the aforesaid conduct by defendants NYPD OFFICERS STEVEN LAVIN and DAVID DARCY, NYPD SERGEANT BRIAN SCHULMAN, NYPD SERGEANT DAVID GRIECO and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff was subjected to an

illegal, improper, and false arrest by the defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

46. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

FOURTH CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
48. Plaintiff was searched by defendants NYPD OFFICERS STEVEN LAVIN and DAVID DARCY, NYPD SERGEANT BRIAN SCHULMAN, NYPD SERGEANT DAVID GRIECO and NYPD OFFICERS JOHN and JANE DOE #1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.
49. As a result of the aforesaid conduct by defendants NYPD OFFICERS STEVEN LAVIN and DAVID DARCY, NYPD SERGEANT BRIAN SCHULMAN, NYPD SERGEANT DAVID GRIECO and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband, a weapon, or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

50. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FIFTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

51. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
52. Defendants NYPD OFFICERS STEVEN LAVIN and DAVID DARCY, NYPD SERGEANT BRIAN SCHULMAN, NYPD SERGEANT DAVID GRIECO and NYPD OFFICERS JOHN and JANE DOE #1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of assault, battery, false arrest, unlawful imprisonment, and cruel and unusual punishment.
53. Defendants NYPD OFFICERS STEVEN LAVIN and DAVID DARCY, NYPD SERGEANT BRIAN SCHULMAN, NYPD SERGEANT DAVID GRIECO and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
54. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, physical and emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF**CRUEL AND UNUSUAL PUNISHMENT UNDER 42 U.S.C. § 1983**

55. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
56. Defendants NYPD OFFICERS STEVEN LAVIN and DAVID DARCY, NYPD SERGEANT BRIAN SCHULMAN, NYPD SERGEANT DAVID GRIECO and NYPD OFFICERS JOHN and JANE DOE #1-12 subjected Plaintiff to cruel and unusual punishment while Plaintiff was in care and custody of Defendants by denying Plaintiff access to timely and necessary medical treatment in violation of the Eighth Amendment to the United States Constitution.
57. After Defendants NYPD OFFICERS STEVEN LAVIN and DAVID DARCY, NYPD SERGEANT BRIAN SCHULMAN, NYPD SERGEANT DAVID GRIECO and NYPD OFFICERS JOHN and JANE DOE #1-12 committed the intentional torts of assault and battery against Plaintiff by striking Plaintiff with a knee and elbow in his back, and stepping on the handcuffs restraining his wrists, causing, *inter alia*, severe pain to Plaintiff's wrists and leg, Plaintiff required medical care. Nevertheless, Defendant Officers failed to provide Plaintiff medical treatment or transfer him to a hospital or other medical facility for approximately 18 hours. This delay was without justification, and despite repeated requests by Plaintiff for medical attention.
58. In so doing, the conduct of defendants NYPD OFFICERS STEVEN LAVIN and DAVID DARCY, NYPD SERGEANT BRIAN SCHULMAN, NYPD SERGEANT DAVID GRIECO and NYPD OFFICERS JOHN and JANE DOE #1-12 violated the obligation of Defendant City of New York to provide medical care for those it incarcerates. This deliberate indifference to the serious medical needs of Plaintiff while in Defendants' custody constituted unnecessary and wanton infliction of pain in violation of the Eight Amendment.

59. The conduct of NYPD OFFICERS STEVEN LAVIN and DAVID DARCY, NYPD SERGEANT BRIAN SCHULMAN, NYPD SERGEANT DAVID GRIECO and NYPD OFFICERS JOHN and JANE DOE #1-12 in failing to provide necessary medical care for Plaintiff while he was in their custody served no legitimate penological purpose, and the infliction of unnecessary suffering upon Plaintiff was and is inconsistent with contemporary standards of decency.
60. As a result of the foregoing, Plaintiff was unnecessarily forced to endure physical and psychological pain and suffering.

SEVENTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

61. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
62. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
63. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,

D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and

E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

64. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.

65. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.

66. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.

67. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.

68. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.

69. The acts complained of deprived the Plaintiff of their right:

F. Not to be deprived of liberty without due process of law;

G. To be free from seizure and arrest not based upon probable cause;

H. Not to have summary punishment imposed upon them; and

I. To receive equal protection under the law.

WHEREFORE, HILTON BATES, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
December 20, 2021

Respectfully submitted:

By: /s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER STEVEN LAVIN (Tax Reg. # 952971), 67th Precinct, 67th Detective Squad,

NYPD SERGANT BRIAN SCHULMAN (Tax Reg. #939435), Narcotics Borough Staten Island, 1 Police Plaza, New York, NY 10038

NYPD POLICE OFFICER DAVID DARCY (Tax Reg. # 954700), Criminal Intelligence Section, 1 Police Plaza, New York, NY 10038

NYPD SERGEANT DAVID GRIECO (Shield # 3078), Unknown Command, 1 Police Plaza, New York, NY 10038

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
December 20, 2021

15 Sydney O'Hagan
Sydney O'Hagan, Esq.